

FEDERAL MARITIME COMMISSION

DOWN QUARK SYSTEMS, LLC AND SUNNYSIDE
DIGITAL, INC., *Complainants*

v.

ZIM AMERICAN INTEGRATED SHIPPING
SERVICES CO., LLC; ZIM INTEGRATED SHIPPING
SERVICES, LTD.; AND PORT OF HOUSTON
AUTHORITY OF HARRIS COUNTY, TEXAS,
Respondents.

DOCKET NO. 26-07

RESPONDENTS' CONSENT MOTION FOR ENLARGEMENT OF TIME

Pursuant to 46 C.F.R. §§502.71 and 102, Respondents Zim American Integrated Shipping Services Co., LLC (“Zim US”) and Zim Integrated Shipping Services, Ltd (“Zim”) (collectively, “Respondents”), through undersigned counsel, hereby move for enlargement of time to file responsive pleadings to the Complaint, from the current deadline of Friday, June 19, 2026 through and including **Friday, July 3, 2026**. Undersigned counsel has conferred with counsel for Complainants, who consent to the filing of this motion.

The ‘good cause’ required by 46 C.F.R. §502.102 exists for the requested extension. The Complaint was served May 26, 2026; it is sixty-five pages long and asserts at least nine separate Shipping Act violations. The allegations are detailed, the network of entities involved is complex. Moreover, the events giving rise to the claims in the Complaint are also the subject of (1) two currently-pending federal lawsuits in which briefing is underway on multiple motions and (2) a Charge Complaint currently under the FMC’s review. And while the litigation is active and ongoing, the parties (and other interested stakeholders not party to this proceeding) are also still devoting some time and resources to attempting to find an amicable solution to the various interrelated disputes. In light of these circumstances, there is good cause for enlarging Respondents’ time to answer (or file pre-answer motion(s) to) the Complaint from twenty-five days to thirty-nine days, for a new deadline of July 3, 2026.

The requested deadline would (i) potentially allow for potential resolution of the related Charge Complaint, which will likely narrow the issues in this proceeding; (ii) accommodate the briefing schedules in the related federal suits; (iii) provide Respondents with an amount of time commensurate with the length and complexity of the Complaint in which to prepare their responses; and (iv) afford the parties with additional time in which to, possibly, narrow or resolve the issues in this proceeding.

As required by 46 C.F.R. §502.71, prior to timely filing the instant motion at least seven days before the current deadline, counsel for Respondents conferred with counsel for Complainants, who has advised that Complainants consent to the requested extension.

WHEREFORE, it is respectfully requested that the time for filing Respondent's answer and/or motion(s) to Complainants' Complaint be enlarged to Friday, July 3, 2026.

Respectfully submitted,

LISKOW & LEWIS

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**COUNSEL FOR ZIM AMERICAN INTEGRATED
SHIPPING SERVICES CO., LLC AND ZIM
INTEGRATED SHIPPING SERVICES LTD.**

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 9th day of June 2026, the foregoing Consent Motion for Enlargement of Time was served upon served upon the Office of the Secretary via secretary@FMC.gov and upon all counsel of record via electronic mail at the following addresses:

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